Filing # 259231567 E-Filed 10/14/2026 06:29:03 PM

IN THE DISTRICT COURT OF APPEAL
SIXTH DISTRICT, STATE OF FLORIDA

CASE NO.: 6D2026-1769
Lower Tribunal Case No.: 2023-SC-053814-0

PROBUILD COMPANY, LLC

Appellant,

vs.

PRIYA DIANE RAMJIT, &
D.R. HORTON, INC.,

Appellee,

Appeal from Final Judgment of Heather G. Guarch Judge of County Court of the Ninth Judicial Circuit in and for Orange County, Florida.

INITIAL BRIEF OF APPELLANT PROBUILD COMPANY, LLC

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PRELIMINARY STATEMENT

In this Brief, the Appellant, ProBuild Company LLC, will be referred to as "ProBuild" or "Appellant". Appellee D.R. Horton, Inc., will be referred to as "D.R. Horton" or "Appellee". Appellee Priya Diane Ramjit will be referred to as "Ramjit" Citations to the Record on Appeal will be made by the letter "R" with the succeeding numbers indicating the record page number.

STATEMENT OF JURISDICTION

This Court has appellate jurisdiction pursuant to Art. V, §4(b)(1) of the Florida Constitution and Fla. R. App. P. 9.030(b)(1)(A), which confer jurisdiction on this Court to review final orders of Trial Courts that are not directly reviewable by the Florida Supreme Court or a Circuit Court. This appeal is authorized and governed by Fla. R. App. P.9.110 from the Final Judgment rendered by the County Court of the Ninth Judicial Circuit in and for Orange County, Florida, on June 2, 2026. The Final Judgment is a final, appealable order because it fully disposed all claims between the parties, specifically adjudicating Count I of the operative Third-Party Complaint for breach of contractual duty to defend in favor of D.R. Horton, and the Notice of Appeal was timely filed within 30 days of rendition.

STATEMENT OF PRESERVATION AND STANDARD OF REVIEW

Each issue presented in this appeal was properly preserved in the lower tribunal through written responses in opposition to summary judgment, (R.144–176) a motion for reconsideration, (R.631- 784) response in opposition to partial summary judgment (R.310-342) and oral arguments presented during hearings (R.1161-1262).

The standard of review for this Court is *de novo* over a trial court's order granting summary judgment. *Palm Holdings, Ltd. v. Riverfront Plaza, LLC*, 379 So.3d 547, 550 (Fla. 6th DCA 2024) (quoting *Volusia County v. Aberdeen at Ormond Beach, L.P.*, 760 So. 2d 126, 130 (Fla. 2000)). Summary judgment is proper "if the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fla. R. Civ. P. 1.510(a). The moving party bears the initial burden of demonstrating the absence of a genuine dispute of material fact. The non-moving party must then identify record evidence demonstrating that "a reasonable jury could find in its favor." *Shiver v. Chertoff*, 549 F.3d 1342, 1343 (11th Cir. 2008); *Celotex Corp. v. Catrett*, 477 U.S. 317, 324–25 (1986). In reviewing a summary-judgment ruling, the Court must view the evidence "in the light most favorable to the nonmoving party and draw all reasonable inferences in that party's favor." *Newcomb v. Spring Creek Cooler, Inc.*, 926 F.3d 709, 713 (11th Cir. 2019). The moving party may carry its burden by "demonstrating an absence of evidence supporting the nonmoving party's case"; the burden then shifts to the nonmoving

party to point to evidence in the record "establishing a genuine issue for trial." *Celotex*, 477 U.S. at 324–25.

STATEMENT OF THE CASE AND OF THE FACTS

A. Nature of the case

This is an appeal of the Order Granting D.R. Horton's Second Amended Motion for Partial Summary Judgment against ProBuild Duty to Defendant entered on May 13, 2025, and the Final Judgement Order entered in favor of Appellee for damages in the amount of $747.50 on June 2, 2026, which concluded Appellant had breached their contractual duty to defend appellee of claims originally asserted by Priya Diane Ramjit ("Ramjit"). In the Final Judgment Order the Judge (1) entered in favor of appellee against appellant on count one of the operative Third-Party Complaint for breach of contractual duty to defend and (2) the Appellee shall recover from a Appellant the sum of $747.50 which shall bear interest at the statutory rate as set forth in section 55.03 Florida Statute until paid in full for all of which let executed issues and (3) The court reverses jurisdiction to determine entitlement to in the amount of any taxable cost and attorneys' fees and to enforce the terms of this final judgment and (4) Appellee and appellant stipulation to the amount of damages owed by this final judgment (1) shall not affect appellant's right to appeal the grant of summary judgment as the liability in this matter, and (2) shall not affect the

determination of who is the prevailing party in this manner in determining any party's entitlement to attorneys' fees or cost.

B. Statement of the Facts

On September 18, 2020, D.R. Horton received a notice of construction defects pursuant to Section 558.004, Florida Statutes, from Ramjit (R. 76). Because D.R. Horton acted as the general contractor developer for the residential property located at 7836 Tanbier Drive, Orlando, FL 32818 ("Home") (R.76). Within this initial Chapter 558 notice, Ramjit made only a general allegation asserting that improper window flashing could have been a potential issue causing the deterioration of stucco (R.76). Furthermore, in the accompanying expert report by Principal Engineering and Consulting (R.78-96), the only mention of windows was that "cement plaster material was observed to be in direct contact with the window element," noting a failure to isolate dissimilar materials (R. 83).

The notice contained no allegations concerning the selection, specific type of windows installed, or improper installation of the windows. (R.76) Moreover, the engineering report treated windows only as a secondary aspect of a broader stucco defect, identifying the main culprit as improperly applied stucco in direct contact with dissimilar materials, an issue outside the scope of window installation work (R.85).

Then, on or about November 20th 2020, Ramjet filed a complaint against Dr. Horton for construction defects and a breach of contract related to the property (R.180). Additionally, this complaint filed by Ramjet asserted that the type of window was deficient but made no allegations as to the installation method or material quality being defective. Further made no assertion as to window flashing. Meaning that Dr. Horton was on full notice that alleged the claims related to the window were due to the selection and type of window (R.145).

Subsequently, after receipt of the Complaint, on December 21, 2020, D.R. Horton served its Chapter 558 defect claim and defense/indemnity demand on ProBuild pursuant to Sections 558.004 and 627.4137, Florida Statutes (R. 97). However, because the underlying Chapter 558 notice was limited strictly to improper window flashing, it failed to provide ProBuild with legally sufficient notice regarding Ramjit's allegation against D.R. Horton's concerning the architectural selection of C-channel windows. (R. 97). Dr. Horton was fully aware of the allegation claim regarding the window selections at this time and failed to mention it in the Chapter 558 letter sent to ProBuild (R.145).

Dr. Horton initially responded to Ramjit's complaint by filing a Motion to Dismiss and Motion to Strike for Jury Trial on or about December 14th, 2020 (R.180). While this Motion to Dismiss was still pending, Dr. Horton filed a Third-Party Complaint naming numerous Third-Party defendants, including ProBuild for

alleged construction defects (R. 180). Further, it was not until January 13th, 2022, almost a year to the day after it filed its Third-Party Complaint, that Dr. Horton filed an answer to the complaint; however, this was also after Ramjit dismissed Count IV of the complaint on October 13th, 2021, which was the only claim related to the Window type selected by Dr. Horton (R.180).

On August 29, 2023, the Circuit Court entered an Order Granting D.R. Horton's Motion to Transfer to Small Claims Court [R. 15–16]. The action was formally initiated in the County Court of the Ninth Judicial Circuit, Case No. 2023-SC-053814-O, on September 5, 2023 (R. 17), and a Notice of Transfer was issued on September 29, 2023 (R. 17–18).

On September 8, 2023, the deposition of Joseph H. Tucker was taken as the corporate representative for D.R. Horton by attorney Jason Vrbensky (R. 162). The deposition was set before the Motion to Transfer was Filed. (R. During the deposition, a wide range of topics was covered, including D.R. Horton's policy regarding window selection, Ramjit's original claims regarding the windows, and D.R. Horton's ability to produce the contract.

In his deposition as the corporate representative for D.R. Horton, Joseph N. Tucker was asked to review and verify the operative contract between D.R. Horton and ProBuild regarding the subject property. When presented with the agreement,

Mr. Tucker was unable to establish that it governed the Ramjit property or provide the factual basis for D.R. Horton's contractual indemnity claim:

> August 1st, 2011, between ProBuild company and D.R. Horton, Inc., Tampa division.
> Do you know if this was the agreement that was in place in regards to the Ramjit properly?
> A. I'm not sure. It's - it says "Tampa," so that -- I'm just not 100 percent sure if that was used in Orlando or not.
> *Q.* All right. So as a corporate representative of D.R. Horton, you cannot sit here and identify that as the contract in place related to the purchase and installation of windows by D.R. Horton from ProBuild at the Ramjit properly; is that correct?
> A. That's correct.
> for D.R. Horton, Inc., *pg. 11 ln 14-25; pg.12 ln 1-2* (R. 164)

Additionally, addressing the window specifications and permitting process, Mr. Tucker confirmed that D.R. Horton is not claiming the installed windows failed to meet community specifications. Furthermore, he testified that the installed windows complied with the Florida product approvals listed on the permit application:

> Q. Is D.R. Horton in this matter asserting that the windows installed did not comply with D.R. Horton's community specifications for that project community?
> A. No, sir.
> Q. And if I'm not mistaken, it's typical that D.R. Horton will list the types of windows that are being installed on the penmit application, as there is typically a Florida product approval for those windows, correct?
> A. Correct.
> Q. Do you have any reason to believe that was not done in this case?

A. I have no reason to believe.
Q. All right. And so once those windows are put on the permit application, those are the types of windows that are approved as part of the penmit for installation, correct?
A. Correct.
Q. As far as D.R. Horton is aware, were the windows that were part of the penmit application the types of windows that were installed at the Ramjit property?
A. I believe so, yes.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., pg. 15 ln 17-25; pg.16 ln 1-4 (R. 165)

Finally, Mr. Tucker reaffirmed D.R. Horton's position that ProBuild supplied and installed the specific window types selected by D.R. Horton and the manufacturer, and that the underlying action does not involve a claim against installation execution:

Q. So as I understand your testimony so far though, is it D.R. Horton's position that ProBuild supplied and installed the windows that were selected by D.R. Horton and the manufacturer, correct?
A. Yes, sir.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 20 ln 4-8* (R.166)

Moreover, when confronted with Plaintiff Ms. Ramjit's deposition testimony, Mr. Tucker acknowledged that the homeowner's claims were strictly directed at the selected type of window ("C" channel window) rather than any deficiency or flaw in ProBuild's installation methodology:

Q. All right. I'm going to show you. Starting at page 11, line 20 of the deposition of Ms. Ramj it. Starting with the question.
"Q. All right. One of your claims that you

originally included, you know, in the complaint, was Count JV negligence as to D.R. Horton asserting supposed liability of the window installation subcontractor. But looking at your allegations, and these are 43 through 50 of Exhibit 1 of your complaint, would you agree with me that the alleged allegations regarding window installation was limited to the type of window that was installed, talking abou1 a "C" channel window, as opposed to the methodology of the window installation?
"Answer: That is correct."
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg.17 ln 19-25; pg.18 ln 1-7* (R. 166)

When asked about the scope of the homeowner's claims, Mr. Tucker confirmed that D.R. Horton has no basis to dispute Ms. Ramjit's assertion that her allegations were strictly limited to the type of window selected, rather than the methodology of the installation:

Q. Okay. Does D.R. Horton have any reason to dispute Ms. Ramj it's assertion that her only complaints regarding the windows was the window type, not the window installation?
A. No, sir.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg.17 ln 19-22* (R.166)

Furthermore, D.R. Horton's corporate representative conceded that ProBuild committed no underlying breach related to its scope of work, clarifying that D.R. Horton's position rests entirely on a failure to defend against claims that do not even target the installation:

BY MR. VRBENSKY:
Q. Okay. And if ProBuild supplied the windows selected by D.R. Horton and the manufacturer, and there were no allegations regarding the installation type, are you aware of

what, if anything, allegedly ProBuild did to breach its contract with D.R. Horton?
MR GROSSHANS: Object to form. You can answer, Joe.
THE WITNESS: The only thing I was aware of was, from what I understand, it was their lack to defend.
BY MR. VRBENSKY:
Q. Defend what?
A. D.R. Horton.
Q. For what? For claims involving what though? Because there are no claims, right? We read the testimony. There were no claims involving the installation of the windows, correct?
MR GROSSHANS: Object to form.
THE WITNESS: I don't believe -- I don't believe so, no, sir.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 22 ln 1-19* (R.167)

Additionally, when re-examined regarding the underlying agreement, Mr. Tucker reiterated that he was unable to identify the contract shown to him as the governing agreement for the work performed between D.R. Horton and ProBuild at the Ramjit property:

Q. We talked about it earlier, you, sitting here today, cannot identify the contract that would have guided -- that would have related to the work between D.R. Horton and ProBuild at the Ramjit project, correct?
A. Not -- yeah, not the one that was shown to me.
Q. The one shown to you, you cannot identify as being related to the work, correct?
A. I cannot.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 32 ln 3-10* (R.169)

When questioned about whether ProBuild is required to defend or indemnify D.R. Horton for D.R. Horton's own selection of the window type, Mr. Tucker stated that any such obligation depends on the contractual requirements. However, he admitted once again that he could not identify any contract containing such a requirement:

ProBuild should indemnify or defend D.R. Horton for
DR Horton's selection of window type?
THE COURT: [sic] Object to form.
BY MR. VRBENSKY
Q. You can answer.
A. Once again, I think it's just from contractually
what their requirement is.
Q And that contract you can't identify today; right?
A. I cannot
Deposition of Joseph N. Tucker as Corporate Representative
for D.R. Horton, Inc., *pg. 33 ln 16-24* (R.170)

On January 9, 2024, D.R. Horton re-filed the Affidavit of Louis Avelli (originally executed May 19, 2023), Land Development Manager for D.R. Horton's Orlando East Division (R. 57–101), authenticating the 2011 Agreement, Purchase Order, payment record, homeowner Chapter 558 notice, and defense tender. That same day, D.R. Horton re-filed the Affidavit of Ryan Kramer (originally executed June 29, 2022), Operations Manager for D.R. Horton's Central Florida Division (R. 102–143), corroborating D.R. Horton's business records, contractual agreements, and tender of defense.

In D.R. Horton's Amended Motion for Partial Summary Judgment filed on January 9, 2024, pursuant to Fla. R. Civ. P. 1.510 (R. 49–56). On January 17, 2024, ProBuild filed its Response in Opposition to Motion for Summary Judgment, asserting that D.R. Horton's corporate representative could not produce a specific executed contract between D.R. Horton and ProBuild for the subject property beyond the general 2011 blanket agreement. (R. 144–176)

On February 6, 2025, D.R. Horton filed its Second Amended Motion for Partial Summary Judgment regarding ProBuild's contractual duty to defend under Fla. R. Civ. P. 1.510 (R. 294–301). On March 18, 2025, ProBuild filed its Response in Opposition and Cross-Motion for Summary Judgment (R. 310–395), arguing that the contract did not apply to create a duty to defend because no specific signed subcontract existed for the work at the property other than the purchase order (R. 343–395). On April 28, 2025, D.R. Horton filed a Notice of Dropping Claim as to the indemnity portion of Count I of its Amended Third-Party Complaint (R. 411–412). On May 13, 2025, the trial court entered an Order Granting Partial Summary Judgment as to ProBuild, regarding its contractual duty to defend under Section 10.1 of the August 1, 2011 Agreement (R. 515–524). On February 13, 2026, the trial court entered an Order Denying Third-Party Defendant's Motion for Reconsideration (R. 1033–1035).

On July 1, 2026, ProBuild filed its Notice of Appeal, invoking the jurisdiction of the District Court of Appeal of Florida, Sixth District (DCA No. 6D2026-1769) (R. 1129–1152). On July 10, 2026, transcripts were filed into the Record on Appeal, including the Notice of Filing Hearing Transcript on D.R. Horton's Second Amended Motion for Partial Summary Judgment (R. 1161–1215) and the Notice of Filing Transcript on Third Party Defendant, ProBuild Company, LLC (R. 1216–1262). Following an order of dismissal issued on August 4, 2026, the Sixth District Court of Appeal granted Appellant's Motion for Reinstatement on August 28, 2026, vacated the dismissal, and ordered the transmittal of the record. The Clerk of the Circuit Court certified and transmitted the Record on Appeal on September 1, 2026 (R. 1272).

SUMMARY OF THE ARGUMENT

Summary judgment was improper under Fla. R. Civ. P. 1.510 because genuine issues of material fact exist regarding the very existence and applicability of an enforceable contract governing the Orlando project. D.R. Horton relied on a contract facially restricted to its Tampa division for a home constructed in Orlando, and the attached instrument was incomplete. Furthermore, because the contract identity is disputed, D.R. Horton failed to establish compliance with the monetary limitation and commercial relationship requirements of Florida Statute §725.06(1).

D.R. Horton's designated Corporate Representative admitted under oath during a Rule 1.310(b)(6) deposition that the corporation could neither produce nor confirm an Orlando division contract nor verify that the Tampa agreement applied. Under Florida law, these sworn corporate admissions are binding and cannot be contradicted or nullified by self-serving pre-deposition affidavits to manufacture summary judgment.

The underlying claims in the lawsuit against D.R. Horton were strictly rooted in D.R. Horton's exclusive product selection ("C" Channel windows), rather than any installation error, workmanship defect, or manufacturing flaw attributable to ProBuild. Because Ramjit voluntarily dismissed Count IV, the sole window-type selection claim before D.R. Horton answered, and D.R. Horton dropped its indemnity claims, no claim triggered ProBuild's duty to defend as a matter of law.

ARGUMENT

I. The Lower Tribunal Erred in Granting Summary Judgment Where Genuine Issues of Material Fact Persist Regarding the Existence, Applicability, and Statutory Compliance of the Operative Contract Under Fla. Stat. §725.06.

The trial court committed reversible error in granting summary judgment in favor of D.R. Horton because genuine issues of material fact remain unresolved regarding whether the Florida Independent Contractor Agreement ever legally governed the Orlando construction project at issue, whether the agreement complies

with mandatory statutory prerequisites under Fla. Stat. § 725.06(1), and how responsibility for product selection was allocated between the parties.

Appellate review of an order granting summary judgment is conducted *de novo*. *Volusia Cnty. v. Aberdeen at Ormond Beach, L.P.*, 760 So.2d 126, 130 (Fla. 2000). Under Fla. R. Civ. P. 1.510(a), summary judgment is appropriate only when "the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fla. R. Civ. P. 1.510(a). Florida adheres to the federal summary judgment standard and the *Celotex* trilogy, which mandates that the moving party affirmatively demonstrate the complete absence of any genuine factual dispute. *In re Amends. to Fla. Rule of Civ. Proc. 1.510*, 317 So.3d 72, 75–77 (Fla. 2021). Furthermore, establishing the threshold existence and unambiguous applicability of an enforceable contract governing the specific project location is a mandatory prerequisite to enforcing any contractual duty to defend or indemnify. *Nichols v. Vill. Park Mobile Home Ests., Inc.*, 237 So.2d 807, 808 (Fla. 2d DCA 1970). Pursuant to Fla. Stat. § 725.06(1), any construction contract indemnification or defense provision is strictly "void and unenforceable" unless the contract contains a monetary limitation on indemnification that "bears a reasonable commercial relationship to the contract." § 725.06(1), Fla. Stat. (2025). Florida jurisprudence dictates that a party seeking summary enforcement of contractual indemnity and defense obligations must establish that the underlying contract

unambiguously encompasses the subject project and location (*Nichols*, 237 So.2d at 808). Where contracts contain geographic, divisional, or structural ambiguities or fail to satisfy the strict commercial reasonableness requirements of Fla. Stat. § 725.06(1) summary disposition is improper as a matter of law.

The Record on Appeal conclusively demonstrates an irreconcilable divisional mismatch and foundational incompleteness that precludes summary judgment. Specifically, D.R. Horton relies on a master "Florida Independent Contractor Agreement" executed on August 1, 2011, which on its face is explicitly restricted to D.R. Horton's "Tampa" division (R. 62). In stark contrast, the subject single-family residence located in Orlando, Florida, was constructed in Orange County under D.R. Horton's separate Orlando divisions, as confirmed by the affidavits of Orlando East Division Land Development Manager Louis Avelli and Central Florida Division Operations Manager Ryan Kramer (R. 59, 104,). Although D.R. Horton points to Purchase Order No. 207006 issued for the home, the underlying master agreement is incomplete on its face and fails to establish that Tampa administrative terms legally bound Orlando municipal operations (R. 62–75). This fatal uncertainty regarding the operative contract is further established by the sworn admissions of D.R. Horton’s own designated corporate representative, Joseph N. Tucker, who testified under oath that he could not identify the proffered contract as relating to the work performed on the Ramjit project:

Q. We talked about it earlier, you, sitting here today, cannot identify the contract that would have guided -- that would have related to the work between D.R. Horton and ProBuild at the Ramjit project, correct?
A. Not -- yeah, not the one that was shown to me.
Q. The one shown to you, you cannot identify as being related to the work, correct?
A. I cannot.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 32 ln 3-10* (R.169)

This lack of contractual alignment and corporate uncertainty surrounding the identity, scope, and enforceability of the operative contract present genuinely contested issues of fact and demonstrate a disconnect with the project site. Consequently, D.R. Horton cannot establish compliance with the commercial reasonableness and monetary limitation mandates of Fla. Stat. § 725.06(1). Because the record contains conflicting contractual documents, an unresolvable divisional mismatch regarding the project site, and undisputed testimony showing that D.R. Horton's own corporate representative could not identify any governing contract for the Project (R. 170), D.R. Horton failed to establish the threshold existence of an applicable contract as a matter of law. Accordingly, granting summary judgment was reversible error (R. 62,).

II. D.R. Horton's Designated Corporate Representative's Binding Admissions Under Fla. R. Civ. P. 1.310(B)(6) Preclude Summary Judgment.

The lower tribunal erred in entering summary judgment because D.R. Horton's designated corporate representative made binding sworn admissions under Fla. R. Civ. P. 1.310(b)(6) confirming an inability to confirm or produce a contract for the Orlando division, and explicitly admitting an inability to identify any governing contract or confirm whether the Tampa-division agreement applied to the Ramjit project, thereby generating genuine issues of material fact that cannot be overcome by contradictory pre-deposition affidavits (R. 1161–1262).

Fla. R. Civ. P. 1.310(b)(6)—the substance of which was borrowed from Fed. R. Civ. P. 30(b)(6)—mandates that a corporate party designated for deposition reasonably prepare its representative to testify regarding specified subject matters and provide "complete, knowledgeable, and binding answers on behalf of the corporation." *Plantation-Simon Inc. v. Bahloul*, 596 So.2d 1159, 1160 (Fla. 4th DCA 1992); *Carriage Hills Condo., Inc. v. JBH Roofing & Constructors, Inc.*, 109 So.3d 329, 334 (Fla. 4th DCA 2013); *Churchill v. DBI Servs., LLC*, 361 So.3d 896, 899 (Fla. 3d DCA 2023). The leading Florida case on this doctrine is *Carriage Hills Condo., Inc. v. JBH Roofing & Constructors, Inc.*, 109 So.3d 329, 334 (Fla. 4th DCA 2013). The Fourth District Court of Appeal held that under Rule 1.310(b)(6), "the person(s) designated to testify represents the collective knowledge of the

corporation, not of the individual deponents." *Id.* at 334. Adopting the precise language from federal precedent, the court explained that as the corporation's "voice," the witness does "not simply testify about matters within his or her personal knowledge but rather is 'speaking for the corporation.'" *Id.* at 334–35. The court further held that "the corporation appears vicariously through its designees." *Id.* at 335. While such testimony does not constitute an immutable judicial admission that permanently estops the corporation from offering contradictory evidence at trial *Id.*

When properly noticed, the designee's testimony is deemed to be the testimony of the corporation itself and commits the entity to a position at that point in time. *State Farm Mut. Auto. Ins. Co. v. New Horizont, Inc.*, 250 F.R.D. 203, 212 (E.D. Pa. 2008). While such testimony does not constitute an immutable judicial admission that permanently estops the corporation from offering contradictory evidence at trial *Id.*, a corporate party "when met by a motion for summary judgment, may not repudiate or contradict by affidavit [its] previous deposition testimony so as to create a jury issue" without a valid, credible explanation. *Cary v. Keene Corp.*, 472 So. 2d 851, 853 (Fla. 1st DCA 1985); *Ellison v. Anderson*, 74 So.2d 680, 681 (Fla. 1954); *Croft v. York*, 244 So.2d 161, 165 (Fla. 1st DCA 1971). Florida courts strictly enforce the rule that a litigant cannot manufacture a sham issue of fact to defeat summary judgment by submitting a late affidavit that flatly contradicts earlier binding deposition testimony given by its designated corporate representative (*Cary*,

472 So.2d at 853). However, where an affidavit is the earlier sworn statement and a deposition directly undermines it, courts apply the same logic in reverse. In *Slominski v. Citizens Prop. Ins. Corp.*, 99 So. 3d 973 (Fla. 4th DCA 2012), the court refused to allow the party to rely on affidavits that were "inconsistent with their prior deposition testimony," holding that where deposition testimony directly contradicts affidavit statements, the party "was not entitled to rely upon them in opposition to summary judgment" *Id.* at 976. Fla. R. Civ. P. 1.310(b)(6) testimony establishes the corporate baseline, binding the entity unless properly clarified or corrected through recognized evidentiary mechanisms.

D.R. Horton attempted to establish contractual applicability and overcome foundational gaps through boilerplate pre-deposition affidavits executed by corporate managers Louis Avelli and Ryan Kramer (R. 59–101, 104–143). However, during discovery depositions, D.R. Horton's designated corporate representative, Joseph N. Tucker, admitted under oath as the official "voice" of the entity that the corporation could neither produce nor confirm a contract specifically executed for the Orlando division, and further conceded an inability to state with certainty that the Tampa-limited agreement governed the Home (R.169). Crucially, Mr. Tucker reaffirmed this inability under oath:

> Q. We talked about it earlier, you, sitting here today, cannot identify the contract that would have guided -- that would have related to the work between D.R. Horton and ProBuild at the Ramjit project, correct?

A. Not -- yeah, not the one that was shown to me.
Q. The one shown to you, you cannot identify as being related to the work, correct?
A. I cannot.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 32 ln 3-10* (R.169)

Furthermore, when specifically confronted with the August 1, 2011 Tampa division agreement, Mr. Tucker conceded he could not verify its application to the Orlando project:

August 1st, 2011, between ProBuild company and D.R. Horton, Inc., Tampa division.
Do you know if this was the agreement that was in place in regards to the Ramjit properly?
A. I'm not sure. It's - it says "Tampa," so that -- I'm just not 100 percent sure if that was used in Orlando or not.
Q. All right. So as a corporate representative of D.R. Horton, you cannot sit here and identify that as the contract in place related to the purchase and installation of windows by D.R. Horton from ProBuild at the Ramjit properly; is that correct?
A. That's correct.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 11 ln 14-25; pg.12 ln 1-2* (R. 164)

Mr. Tucker further reiterated this fundamental contractual uncertainty when questioned regarding indemnification requirements:

ProBuild should indemnify or defend D.R. Horton for DR Horton's selection of window type?
THE COURT: Object to form.
BY MR. VRBENSKY
Q. You can answer.
A. Once again, I think it's just from contractually what their requirement is.

Q And that contract you can't identify today; right?
A. I cannot
Deposition of Joseph N. Tucker as Corporate Representative
for D.R. Horton, Inc., *pg. 33 ln 16-24* (R.170)

Under Fla. Stat. § 90.604 and Fla. Stat. § 90.803(18), these sworn deposition statements constitute admissible, binding corporate admissions underscoring a fatal lack of personal knowledge and organizational certainty regarding foundational contract terms and scope allocation. D.R. Horton's attempt to override these binding corporate admissions with supporting pre-deposition affidavits generates an impermissible internal contradiction that defeats summary judgment under Florida's federal summary judgment standard, as a corporate litigant cannot simply retract prior sworn deposition testimony by affidavit to manufacture a feigned jury issue (*Cary*, 472 So.2d at 853; *Ellison*, 74 So. 2d at 681; *Slominski*, 99 So.3d at 976).

Where the movant's designated corporate witness admits uncertainty regarding the foundational contract as the official voice of the entity and confirms an inability to identify any governing contract for the project (R. 169-170), genuine issues of material fact exist, rendering summary judgment reversible error.

III. The Voluntary Dismissal of Count IV and the Absence of Any Allegation of Workmanship Defects Attributable to ProBuild Relieve ProBuild of Any Duty to Defend as a Matter of Law.

The trial court erred as a matter of law in enforcing a contractual duty to defend where the sole underlying count implicating window selections was voluntarily dismissed prior to answer, the remaining claims bore no factual nexus to ProBuild's scope of work, and binding corporate admissions confirm the total absence of any installation execution claims.

A contractual duty to defend is evaluated strictly based on the allegations contained within the four corners of the underlying complaint. *Metro. Dade County v. CBM Indus. of Minn., Inc.*, 776 So.2d 937, 938 (Fla. 3d DCA 2000). Where the underlying claims do not implicate the subcontractor's actual scope of work, materials, or workmanship, the duty to defend is not triggered. *Id.* The "four corners" rule limits the duty to defend to the active, live allegations asserted in the underlying litigation *Id.*. If the claims touching upon a subcontractor's scope are voluntarily dismissed or abandoned, and remaining claims fail to allege any defect in the subcontractor's actual workmanship or field execution, the duty to defend is extinguished as a matter of law.

The Record on Appeal demonstrates that the underlying claims against D.R. Horton were strictly rooted in D.R. Horton's independent product choice—specifically, the selection of "C" Channel windows and architectural design

specifications which fell within D.R. Horton's exclusive discretion. The expert report prepared by Barry J. Smith, P.E., of Pinnacle Engineering focused entirely on stucco thickness, casing beads, and architectural detailing (R.76-96) rather than defective window installation or workmanship by ProBuild (R.803–810). Crucially, on October 13, 2021, Ramjit voluntarily dismissed Count IV of her Complaint (the sole count addressing window type selection) before D.R. Horton ever filed its answer (R.180). Subsequently, D.R. Horton dropped its direct claims for breach of contract and common law indemnity, leaving only an isolated claim for an alleged duty to indemnify and defend (R. 411–412, 515–524).

This complete absence of any claim regarding installation execution or workmanship is conclusively established by the sworn admissions of D.R. Horton's designated corporate representative, Joseph N. Tucker. When confronted with the allegations of the underlying complaint, Mr. Tucker was questioned directly regarding the scope of Ms. Ramjit's allegations:

Q. All right. I'm going to show you. Starting at page 11, line 20 of the deposition of Ms. Ramj it. Starting with the question.
"Q. All right. One of your claims that you originally included, you know, in the complaint, was Count JV negligence as to D.R. Horton asserting supposed liability of the window installation subcontractor. But looking at your allegations, and these are 43 through 50 of Exhibit 1 of your complaint, would you agree with me that the alleged allegations regarding window installation was limited to the type of window that was installed, talking abou1 a "C" channel window, as opposed to the methodology of the window

installation?
"Answer: That is correct."
Deposition of Joseph N. Tucker as Corporate Representative
for D.R. Horton, Inc., *pg.17 ln 19-25; pg.18 ln 1-7* (R. 166)

Mr. Tucker further confirmed that D.R. Horton has no reason to dispute Ms. Ramjit's assertion that her only complaints regarding the windows concerned the window type, not the installation:

Q. Okay. Does D.R. Horton have any reason to dispute
Ms. Ramj it's assertion that her only complaints regarding the
windows was the window type, not the window installation?
A. No, sir.
Deposition of Joseph N. Tucker as Corporate Representative
for D.R. Horton, Inc., *pg.17 ln 19-22* (R.166)

Consequently, when questioned regarding any factual basis for ProBuild breaching its contract or triggering defense obligations in the absence of installation claims, Mr. Tucker admitted he knew of no such claims involving window installation:

BY MR. VRBENSKY:
Q. Okay. And if ProBuild supplied the windows selected
by D.R. Horton and the manufacturer, and there were no
allegations regarding the installation type, are you aware of
what, if anything, allegedly ProBuild did to breach its
contract with D.R. Horton?
MR GROSSHANS: Object to form. You can answer, Joe.
THE WITNESS: The only thing I was aware of was,
from what I understand, it was their lack to defend.
BY MR. VRBENSKY:
Q. Defend what?
A. D.R. Horton.
Q. For what? For claims involving what though?
Because there are no claims, right? We read the testimony.

There were no claims involving the installation of the windows, correct?
MR GROSSHANS: Object to form.
THE WITNESS: I don't believe -- I don't believe so, no, sir.
Deposition of Joseph N. Tucker as Corporate Representative for D.R. Horton, Inc., *pg. 22 ln 1-19* (R.167)

Because the underlying litigation contained no surviving allegations arising out of, or resulting from, ProBuild's actual workmanship, methodology, or independent material choices, ProBuild's contractual defense obligations under Section 10.1 of the agreement were never triggered (R. 65). The trial court erred in finding a duty to defend as a matter of law because the voluntary dismissal of Count IV, the lack of any workmanship or installation execution nexus, and the corporate representative's explicit admissions confirming that claims were limited solely to window type rather than installation methodology (R.166-167) entirely extinguished ProBuild's defense obligations (R. 411–412, 515–524).

Conclusion

For the foregoing reasons, Appellant respectfully requests that this Court reverse the final judgment and partial summary judgment entered in favor of D.R. Horton, Inc., vacate any award of attorneys' fees and costs against ProBuild, and remand with instructions to enter final judgment in favor of ProBuild (R. 420).

Summary judgment was improper for three independent and dispositive reasons. First, genuine issues of material fact preclude a finding that an enforceable

contract governed the Orlando construction project. D.R. Horton's reliance on a Florida Independent Contractor Agreement, explicitly restricted to its Tampa division, creates an unresolvable divisional mismatch with the Orange County project managed by its Orlando divisions, rendering the agreement legally insufficient and non-compliant with the statutory commercial reasonableness and monetary limitation mandates of Florida Statute § 725.06(1) (R. 59, 62–74, 104,). Second, this foundational contractual gap was cemented by D.R. Horton's own designated corporate representative, who testified under oath pursuant to Fla. R. Civ. P. 1.310(b)(6), that the corporation could neither locate nor confirm an Orlando-specific contract binding admissions that D.R. Horton cannot unilaterally erase or contradict through self-serving pre-deposition affidavits to manufacture a feigned issue of fact (R. 59–143, 1161–1262). Third, even if a binding agreement were presumed, ProBuild's contractual duty to defend was never triggered. The underlying litigation lacked any surviving allegations connecting ProBuild's actual workmanship or materials to actionable defects particularly after Ramjit voluntarily dismissed Count IV before answering leaving zero factual nexus to support D.R. Horton's indemnity and defense claims (R.411–412, 515–524, 803–810).

Accordingly, the judgment below must be reversed and rendered in favor of Appellant.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY a true and correct copy hereof has been furnished by e-service to all parties on pursuant to Florida Rule of Judicial Administration 2.516 to the attached Counsel List, on this 14 day of October 2026.

/s/ Jason B. Vrbensky
JASON B. VRBENSKY

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the font and word count requirements of Fla. R. App. P. 9.210(a) and 9.045, and that it is prepared in Times New Roman 14-point font and does not exceed the word limitation in that the principal part of the brief contains no more than 6,173words.

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